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County: los-angeles

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Case Number: 25TRCV01746 Hearing Date: August 21, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

RIGOBERTO VASQUEZ

;

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC.

;

Defendant.

Case

No.:

25TRCV01746

Hearing

Date:

August
21, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF RIGOBERTO VASQUEZ' MOTION TO COMPEL
THE DEPOSITION OF DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S PERSON MOST
KNOWLEDGEABLE AND PRODUCTION OF DOCUMENTS

(2)

PLAINTIFF RIGOBERTO VASQUEZ' REQUEST FOR
MONETARY SANCTIONS

(3)

DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S
REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: Plaintiff, Rigoberto Vasquez

RESPONDING

PARTY: Defendant, American Honda
Motor Co., Inc.

(1)

Plaintiff

Rigoberto Vasquez' Motion to Compel the Deposition of Defendant American Honda
Motor Co., Inc.'s Person Most Knowledgeable and Production of Documents is DENIED
pursuant to Code of Civil Procedure section 2025.450, subdivision (a).

(2)

Plaintiff

Rigoberto Vasquez' Request for Monetary Sanctions is DENIED pursuant to Code of
Civil Procedure sections 2023.010, 2023.030, 2025.450, subdivision (g)(1), and

2031.310, subdivision (h).

(3)

Defendant

American Honda Motor Co., Inc.'s Request for Monetary Sanctions is DENIED pursuant to Code of Civil Procedure sections 128.5, 2023.010, and 2023.030.

The

Court considers the moving papers filed on May 21, 2026, the opposition brief filed on July 10, 2026, and the reply brief filed on July 16, 2026.

BACKGROUND

Factual

Background

On May 28, 2025, plaintiff Rigoberto Vasquez ("Plaintiff") filed the Complaint against defendants American Honda Motor Co., Inc. ("Defendant") and DOES 1 through 10. The Complaint includes the following causes of action: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of Song-Beverly Act Section 1793.2.

On August 21, 2025, Plaintiff served a deposition notice for Defendant's PMK, scheduling the deposition for September 11, 2025. (Declaration of Daniel Gopstein ("Gopstein Decl."), ¶ 13, Exh. 3.) The deposition notice included thirty-four topics for examination, several of which contained multiple components, along with sixteen requests for the production of documents. (Gopstein Decl., Exh. 3.)

On September 4, 2025, Defendant served objections to the deposition notice. (Gopstein Decl., Exh. 3.) It contended that the deposition had been unilaterally scheduled, indicating that neither the PMK nor Defendant's counsel would be available on that date. (Gopstein Decl., Exh. 3.) Furthermore, Defendant expressed a willingness to meet and confer regarding the deposition date and raised objections regarding both the matters for examination and the requested documents. (Gopstein Decl., Exh. 3.)

On September 16, 2025, Plaintiff served an amended deposition notice for Defendant's PMK, scheduling the deposition for September 30, 2025. (Gopstein Decl., ¶ 14, Exh. 4.) On September 23, 2025, Defendant responded with objections to the amended deposition notice. (Gopstein Decl., Exh. 4.)

Subsequently, on October 1, 2025, Plaintiff served the second amended deposition notice for Defendant's PMK, scheduling the deposition for October 15, 2025. (Gopstein Decl., ¶ 15, Exh. 5.) Additionally, Plaintiff also sent a meet-and-confer letter, addressing Defendant's objections and requesting new deposition dates by October 8, 2025. (Gopstein Decl., ¶ 18, Exh. 7.) On October 9, 2025, Defendant served objections to the second amended deposition notice. (Gopstein Decl., ¶ 15.)

On October 14, 2025, Plaintiff served the third amended deposition notice for Defendant's PMK, scheduling the deposition for October 28, 2025. (Gopstein Decl., ¶ 16, Exh. 6.) On October 23, 2025, Defendant served similar objections to the third amended deposition notice. (Gopstein Decl., ¶ 16, Exh. 6.)

On April 16, 2026, Defendant's counsel proposed January 28, 2027, at 1:00 p.m. as a potential date for the PMK's deposition. (Gopstein Decl., ¶ 18, Exh. 7.) In response, Plaintiff's counsel requested that Defendant "provide dates for the deposition to occur within the next 6 months." (Gopstein Decl., Exh. 8.) Defendant's counsel replied, "Trial is in 2028. This is the earliest date the witness has available." (Gopstein Decl., ¶ 20, Exh. 8.)

Subsequently, on June 3, 2026, Defendant suggested October 23, 2026, as a possible date for the deposition. (Declaration of Jade H. Chen ("Chen Decl."), ¶ 8, Exh. E.) Neither party clarifies whether Plaintiff's counsel responded to this suggestion.

On July 7, 2026, Defendant's counsel proposed September 28, 2026, as a potential deposition date. (Chen Decl., ¶ 9, Exh. F.) The following day, Plaintiff's counsel accepted the proposed date. (Chen Decl., ¶ 9, Exh. F.) On the same day, Defendant's counsel requested that the motion be taken off-calendar, asserting that it was moot. (Chen Decl., ¶ 9, Exh. F.) Plaintiff's counsel then responded, "I'm willing to take the motion off calendar if you can confirm that supplement code compliant responses to the RFP will be provided at the time

your office serves their response to our NOD and RFP, the last time your client provided meritless objections. Please advise at your earliest convenience.” (Chen Decl., ¶ 9, Exh. F.)

On June 1, 2026, the Court signed the Stipulation and Protective Order – Confidential Designation Only.

LEGAL STANDARDS

Code of Civil Procedure

section 2025.450, subdivision (a) provides: “If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

The motion must “be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a

declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).) “Notwithstanding the outcome of the particular discovery motion, the court shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.020.)

“If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Under Code of Civil Procedure section 2023.030, subdivision (a), “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2023.030, subd. (a).)

“Misuses of the discovery process include ... (d) Failing to respond or to submit to an authorized method of discovery.
... (i) Failing to confer or to attempt to confer, in person, by telephone, or by videoconference with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made..” (Code Civ. Proc., § 2023.010, subds. (d), (i).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules of Court, rule 3.1348(a).)

DISCUSSION

Plaintiff requests that the Court issue an order “waiving all of Defendant’s objections and compelling Defendant to produce a qualified PMK witness and all responsive documents within 10 calendar days from entry of this Court’s Order.” (Motion, p. 7:20-22.) Additionally, Plaintiff requests \$4,310.00 in sanctions to cover attorney’s fees and costs incurred in the filing of this motion. (Motion, pp. 11:14-13:8.)

However, Plaintiff must meet and confer with Defendant before bringing this motion, either by contacting the deponents to inquire about the nonappearance or by following Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2025.450, subd. (b)(2).) Code of Civil Procedure section 2016.040 states that a meet and confer declaration “in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) “ ‘The parties must present to each other the merits of their respective positions with the same candor, specificity and support during informal negotiations as during the briefing of discovery motions. Only after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.’ ” (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1293-1294, quoting Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1435.)

On August 21, 2025, Plaintiff served a deposition notice for Defendant’s PMK, scheduling the deposition for September 11, 2025. (Gopstein Decl., ¶ 13, Exh. 3.) The deposition notice included thirty-four topics for examination, several of which contained multiple components, along

with sixteen requests for the production of documents. (Gopstein Decl., Exh. 3.)

On September 4, 2025, Defendant served objections to the deposition notice. (Gopstein Decl., Exh. 3.) It contended that the deposition had been unilaterally scheduled, indicating that neither the PMK nor Defendant's counsel would be available on that date. (Gopstein Decl., Exh. 3.) Furthermore, Defendant expressed a willingness to meet and confer regarding the deposition date and raised objections regarding both the matters for examination and the requested documents. (Gopstein Decl., Exh. 3.)

On September 16, 2025, Plaintiff served an amended deposition notice for Defendant's PMK, scheduling the deposition for September 30, 2025. (Gopstein Decl., ¶ 14, Exh. 4.) On September 23, 2025, Defendant responded with objections to the amended deposition notice. (Gopstein Decl., Exh. 4.)

Subsequently, on October 1, 2025, Plaintiff served the second amended deposition notice for Defendant's PMK, scheduling the deposition for October 15, 2025. (Gopstein Decl., ¶ 15, Exh. 5.) Additionally, Plaintiff also sent a meet-and-confer letter, addressing Defendant's objections and requesting new deposition dates by October 8, 2025. (Gopstein Decl., ¶ 18, Exh. 7.) On October 9, 2025, Defendant served objections to the second amended deposition notice. (Gopstein Decl., ¶ 15.)

On October 14, 2025, Plaintiff served the third amended deposition notice for Defendant's PMK, scheduling the deposition for October 28, 2025. (Gopstein Decl., ¶ 16, Exh. 6.) On October 23, 2025, Defendant served similar objections to the third amended deposition notice. (Gopstein Decl., ¶ 16, Exh. 6.)

On April 16, 2026, Defendant's counsel proposed January 28, 2027, at 1:00 p.m. as a potential date for the PMK's deposition. (Gopstein Decl., ¶ 18, Exh. 7.) In response, Plaintiff's counsel requested that Defendant "provide dates for the deposition to occur within the next 6 months." (Gopstein Decl., Exh. 8.) Defendant's counsel replied, "Trial is in 2028. This is the earliest date the witness has available." (Gopstein Decl., ¶ 20, Exh. 8.)

The Court finds that Plaintiff did not sufficiently engage in the meet-and-confer process. First, the Plaintiff made no attempts to confer in person, by telephone, or via video conference regarding deposition dates, matters for examination, or the requested

documents, as mandated by Code of Civil Procedure section 2016.040. Rather, Plaintiff issued a single meet-and-confer letter to request deposition dates and to assert that Defendant's objections were without merit. Subsequently, Plaintiff rejected Defendant's proposed date of January 27, 2026, and did not make any further attempts to secure deposition dates or to address Defendant's objections. As such, the Court finds insufficient efforts by the Plaintiff to meet and confer within the meaning of the Code.

Second, although Plaintiff maintains that there is no obligation to engage in "endless negotiations," (Opp., p. 1:11), their counsel's actions reflect a lack of effort to negotiate. Issuing multiple deposition notices without making concerted efforts to secure deposition dates until the third unilateral notice does not demonstrate a good faith attempt to obtain dates or to address Defendant's objections.

Third, Plaintiff declined Defendant's initial proposed deposition date on the grounds that it did not align with their preferred schedule. Yet, the proposed date was a year before the trial, affording Plaintiff ample time to conduct necessary discovery.

Finally, the Court notes that the deposition is now scheduled for September 28, 2026, thereby rendering the request to compel the PMK's deposition moot. The remaining issues pertain to the contested categories and requested documents. Nonetheless, Plaintiff's failure to engage in sufficient meet-and-confer efforts, aside from a single letter, leads the Court to conclude that Plaintiff did not adequately attempt to resolve the matter informally.

As such, the Plaintiff's motion in its entirety, including the accompanying request for sanctions is DENIED.

Defendant's Request for Monetary Sanctions

Defendant requests \$2,925.00 in sanctions to cover attorney's fees and costs incurred in opposing this motion. (Opp., pp. 7:8-9:19.) This request is made pursuant to Code of Civil Procedure sections 128.5, 2023.010, and 2023.030. (Motion, pp. 7:10-8:1, 15-22.)

"A trial court may order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees,

incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 128.5, subd. (a).) “A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 128.5, subd. (f)(1)(A).)

Here, Defendant’s request for sanctions appears within an opposition brief; therefore, the imposition of monetary sanctions is not appropriate in accordance with this statute.

Additionally, this Court finds that the imposition of sanctions would be unjust under Code of Civil Procedure sections 2023.010 and 2023.030, considering the actions of Defendant’s counsel. Although Plaintiff did not sufficiently engage in a meet-and-confer process, Defendant also failed in this regard. Defendant delayed for several months before providing a single date and ignored Plaintiff’s single meet-and-confer letter. It appears that Defendant felt no compulsion to provide any dates prior to January 28, 2026, until Plaintiff filed this motion. (Chen Decl., ¶¶ 8-9, Exhs. E-F.)

As such, the Defendant’s request for monetary sanctions is DENIED.

ORDERS

1) Plaintiff

Rigoberto Vasquez’ Motion to Compel the Deposition of Defendant American Honda Motor Co., Inc.’s Person Most Knowledgeable and Production of Documents is DENIED.

2) Plaintiff

Rigoberto Vasquez’ Request for Monetary Sanctions is DENIED.

3) Defendant

American Honda Motor Co., Inc.’s Request for Monetary Sanctions is DENIED.

4) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 21, 2026

Tamara

Hall

Judge

of the Superior Court